

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Laura Kastner	Team: Team # 2	CCRB Case #: 201310222	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/26/2013 3:05 AM	Location of Incident: Sutphin Boulevard and 97th Avenue	18 Mo. SOL 4/26/2015	Precinct: 103		
Date/Time CV Reported Sat, 10/26/2013 3:05 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/30/2013 3:07 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Gukelberger	26809	948350	103 PCT
2. POM Daniel Ward	21743	947596	103 PCT
3. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Gukelberger	Abuse: PO Daniel Gukelberger stopped the car in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Daniel Ward	Abuse: PO Daniel Ward stopped the car in which § 87(2)(b) was an occupant.	B . Exonerated
C . An officer	Abuse: An officer frisked § 87(2)(b)	C . Officer(s) Unidentified
D . An officer	Abuse: An officer searched the car in which § 87(2)(b) was an occupant.	D . Officer(s) Unidentified
§ 87(2)(g), § 87(4-b)		

Case Summary

On October 26, 2013, § 87(2)(b) called the IAB command center to file a complaint (encl. D3-D5), which was received at the CCRB on October 30, 2013 (encl. D6-D7). At approximately 3:05 a.m. on October 26, 2013, § 87(2)(b) was driving in the vicinity of Sutphin Boulevard and 97th Avenue in Queens when his car was stopped by PO Daniel Gukelberger and PO Daniel Ward, both from the 103rd Precinct. The following allegations resulted:

- **Allegation B – Abuse of Authority: PO Daniel Ward stopped the car in which [REDACTED] was an occupant.** § 87(2)(b)

§ 87(2)(g). It is therefore recommended that **Allegations A and B** be closed as **exonerated**.

- **Allegation C – Abuse of Authority: An officer frisked** § 87(2)(b)
- **Allegation D – Abuse of Authority: An officer searched the car in which** § 87(2)(b)
§ 87(2)(b) was an occupant.

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as **officer unidentified**.

- § 87(2)(g), § 87(4-b)

Mediation was attempted, but § 87(2)(b) ultimately decided to pursue an investigation.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) a man who identifies his race as “other,” and who is § 87(2)(b), with brown hair and black eyes, was § 87(2)(b) at the time of the incident.
- § 87(2)(b)
- § 87(2)(b) initially appeared at the CCRB to be interviewed on November 25, 2013, but forgot his identification and was not allowed into the building. A phone interview was scheduled and § 87(2)(b) was handed a verification form and postage-paid envelope to be mailed to the CCRB following his phone interview. Despite numerous copies subsequently

being provided to § 87(2)(b) and despite numerous requests for § 87(2)(b) to mail the signed verification form to the CCRB, as of the date of this report, § 87(2)(b) has failed to do so.

CCRB Statement

§ 87(2)(b) was interviewed over the phone on December 4, 2013 (encl. D8-D14). Less than five minutes after the incident, § 87(2)(b) called IAB to file a complaint (encl. D5). § 87(2)(g)

At approximately 3:05 a.m. on October 26, 2013, § 87(2)(b) was alone, driving on Sutphin Boulevard, in the vicinity of 97th Avenue in Queens. § 87(2)(b) was driving from Pennsylvania to his mother's home in New York. As § 87(2)(b) approached a street light, he observed a blue or black Chevy Impala also approach the light. PO1 and PO2, identified via investigation as PO Daniel Gukelberger and PO Daniel Ward, § 87(2)(g) were looking at § 87(2)(b) from inside their car. When § 87(2)(b) reached the light, the Impala made a U-turn and turned its turret lights on. § 87(2)(b) stopped his car.

PO1 approached § 87(2)(b)'s driver's side and PO2 approached the passenger's side. PO1 was described as a white man in his early 30s, approximately 5'11" tall, with dark hair that was combed back, but not gelled, and dressed in a blue uniform. PO2 was described as a white man who looked a few years older than PO1, approximately 5'11" tall, with dark spikey hair, and dressed in a blue uniform. Neither wore glasses or had facial hair.

§ 87(2)(b) initially said PO1 asked for his license and registration, § 87(2)(b) asked what the problem was, and PO1 repeated the request. When asked how many times § 87(2)(b) was asked to produce the documents, he then said he had them in his hand and rolled his window down before PO1 made his way to him. He added that he provided the documents to PO1 without being asked to do so, and that he then asked what the problem was. [During his IAB call, § 87(2)(b) said he told one of the officers, he did not specify which officer, that he had no physical insurance card, but had the information on an "app." The officer said, "You want to be a smartass?"]

PO1 stood by § 87(2)(b)'s window looking at the documents. Neither officer used their radio or took § 87(2)(b)'s identification to the Impala. PO1 eventually said § 87(2)(b) had tinted windows. § 87(2)(b) said his car had out of state tags and that while he had dark tints, they passed inspection in his state. As § 87(2)(b) spoke with PO1, PO2 banged on the passenger window and ordered § 87(2)(b) to roll it down. § 87(2)(b) complied. PO1 and PO2 both asked § 87(2)(b) where he was coming from and what he was doing. Five minutes into the incident, PO1 asked why § 87(2)(b) was nervous and ordered him to step out of his car. § 87(2)(b) said he felt that he had been racially profiled, but exited on his own.

PO1 immediately frisked § 87(2)(b) as PO2 stood nearby. PO1 patted down § 87(2)(b)'s chest, arms, waist over his clothing and legs. In the process, PO1's pointer finger made contact with § 87(2)(b)'s genitals, over his clothing, which § 87(2)(b) felt was excessive. § 87(2)(b) was wearing boxers, long johns over the boxers, and pants over his long johns. PO1 grabbed hold of the waists of his undergarments and pulled them up. It felt to § 87(2)(b) that PO1 was trying to give him a "wedgie." PO1 did not reach into any of § 87(2)(b)'s pockets, which were all empty. § 87(2)(b) was never handcuffed. [During his IAB call, § 87(2)(b)

said that once out of his car, one of the officers, he did not specify which officer, said, “I want to know what you have on you.” § 87(2)(b) said he had nothing on him. An officer then rifled through § 87(2)(b)’s pockets, but found nothing.]

An officer asked if they could search § 87(2)(b)’s car. § 87(2)(b) said no. PO1 escorted him to the rear. PO2 searched § 87(2)(b)’s car for an unknown amount of time. PO1 kept ordering § 87(2)(b) to face away from his car, but § 87(2)(b) turned his head and saw PO2 first enter through the front passenger’s door and then walk around and enter through the front driver’s door. The seats obstructed § 87(2)(b)’s view of what PO2 was doing, but § 87(2)(b) clearly saw PO2 reaching down and saw him exit the car while manipulating the car seats forward.

§ 87(2)(b) had a clear Ziploc bag, which contained his toothbrush and toothpaste, in his armrest. [During his IAB call, § 87(2)(b) said his toothbrush was wrapped in tissue paper inside a bag.] At the conclusion of the incident, when he was told to go on about his business without being issued any summonses, § 87(2)(b) returned to his car and saw that the toothbrush and toothpaste were on the ground outside of the car. The empty Ziploc bag was on the floor of the car. § 87(2)(b) did not see how his property ended up on the ground, but believed PO2 threw it there.

[During his IAB call, § 87(2)(b) said he told the officers that he needed to know who stopped him, but the officers got into their car and drove away.] When asked if § 87(2)(b) asked for the officers’ names or badge numbers, he initially said he did so after they had entered the Impala. When asked which information § 87(2)(b) specifically requested, he acknowledged that he never verbally requested the officers’ names or shield numbers because he felt intimidated and feared escalating the situation.

§ 87(2)(b) saw no pedestrians or vehicles in the area during this incident. He immediately called 311 and was transferred to IAB, where he provided a description of the officers’ car and read the license plate number to the operator, which he no longer recalled. [During his IAB call, § 87(2)(b) said the officers’ license plate number was § 87(2)(e), § 87(2)(g)]

Attempts to Schedule Photo Viewing

§ 87(2)(b) believed he would be able to identify PO1 and PO2 via photo array. Between December 11, 2013 and August 25, 2014, § 87(2)(b) was called a total of six times at two phone numbers in order to obtain his signed verification form and schedule a photo viewing appointment. Two voicemail messages were left for him. A letter that was mailed to § 87(2)(b) on February 4, 2014 was returned to sender on March 13, 2013, but a letter mailed on August 15, 2014 was unreturned. Between February 4, 2014 and August 25, 2014, three emails were sent to § 87(2)(b). However, as of the date of this report, § 87(2)(b) has failed to provide the CCRB with his signed verification form and has failed to schedule a photo viewing appointment.

NYPD Statements:

Subject Officers: PO DANIEL GUKELBERGER AND PO DANIEL WARD

- *PO Gukelberger, a white man who § 87(2)(b), with brown hair and brown eyes, was § 87(2)(b) old at the time of the incident.*

- *PO Ward, a white man who is § 87(2)(b), with black hair and brown eyes, was § 87(2)(b) old at the time of the incident.*
- *PO Gukelberger and PO Ward worked from 8 p.m. on October 25, 2013 to 4:35 a.m. on October 26, 2013, assigned to Anti-Crime. Neither officer could recall whether he was dressed in plainclothes or in uniform. PO Gukelberger was assigned to an unmarked vehicle, but he could not recall which vehicle or provide a vehicle description. PO Ward could not recall whether his vehicle was marked or unmarked.*

Memo Book

- PO Gukelberger and PO Ward had no memo book entries regarding this incident (encl. E1-E3 and E7-E8).

CCRB Statement

PO Daniel Gukelberger was interviewed at the CCRB on September 10, 2014 (encl. E4-E6) and PO Daniel Ward was interviewed at the CCRB on October 1, 2014 (encl. E9-E11). § 87(2)(g)

PO Gukelberger and PO Ward did not recall this incident, despite being provided with a brief synopsis of its facts. PO Gukelberger was assigned to Anti-Crime with PO Ward, but did not recall what he was doing on the date of this incident. PO Ward did not recall who he was working with, but acknowledged that PO Gukelberger was on the Anti-Crime team with him, so it was possible that they were working together. PO Gukelberger and PO Ward did not recall stopping § 87(2)(b)'s car, frisking § 87(2)(b) or searching § 87(2)(b)'s car.

NYPD Documents

Fleet Services Request

Fleet Services determined the vehicle identified by § 87(2)(b) via license plate number, vehicle number 032210, was assigned to the 103rd Precinct on October 26, 2013 (encl. K7).

Roll Call

The 103rd Precinct Roll Call indicates that PO Gukelberger and PO Ward were working together on the Club Amazura detail and were assigned to vehicle number 322 (encl. F4-F12)

Vehicle Utilization Log

The 103rd Precinct Vehicle Utilization Log identified vehicle number 322, which was assigned to "Amazura," as a black Chevy with license plate number § 87(2)(e), § 87(2)(f) (encl. F13).

Stop, Question and Frisk Log

The handwritten Stop, Question and Frisk log from the 103rd Precinct indicates that no Stop, Question and Frisk Report was prepared in connection with this incident (encl. F3).

Summons/Arrest for Incident and Disposition

No summons or arrests resulted from this incident.

Status of Civil Proceedings

- As of October 1, 2014, the inquiry to determine whether § 87(2)(b) has filed a Notice of Claim with the City of New York in regard to this incident was still pending.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian's CCRB History

- § 87(2)(b) has filed the following CCRB complaint (encl. C1):

- § 87(2)(b)

- § 87(2)(g)

Subject Officers' CCRB History

- PO Gukelberger has been a member of the service for five years and PO Ward has been a member of service for six years. There are no substantiated CCRB allegations against either officer (encl. B1-B2).

Conclusion

Identification of Subject Officers

Fleet Services determined that the vehicle described to IAB by § 87(2)(b) vehicle number 032210, was assigned to the 103rd Precinct (encl. K7). A NYS Department of Motor Vehicle search confirmed that the vehicle is a black 2010 Chevrolet (encl. G1). The Vehicle Utilization Log notes that vehicle 0322, a black Chevy, license plate number § 87(2)(e), § 87(2)(f), was assigned to “Amazura” (encl. F13). The roll call notes that vehicle 322 was assigned to PO Ward and PO Gukelberger for a detail at Club Amazura (encl. F4-F12), which, as per Google Maps, is located at 91-12 144th Place in Queens, an estimated five miles from where § 87(2)(b) was stopped. § 87(2)(g)

§ 87(2)(b) described PO1 as a white man in his early 30s, approximately 5’11” tall and with combed back dark hair and PO2 as a white man who looked a few years older than PO1, approximately 5’11” tall, with spikey dark hair. However, PO Gukelberger’s and PO Ward’s pedigree information indicates that they are both § 87(2)(b)-old white men who are § 87(2)(b) and have dark hair, § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Daniel Gukelberger stopped the car in which

§ 87(2)(b) was an occupant.

Allegation B – Abuse of Authority: PO Daniel Ward stopped the car in which § 87(2)(b)

was an occupant.

§ 87(2)(g)

Although the officers did not recall this incident, and therefore could not speak to why they conducted the car stop, § 87(2)(b) recalled one of the officers stating that he was stopped for the tints on his car’s windows, which § 87(2)(b) described as dark.

No person shall operate any motor vehicle upon any public highway, road or street, the front window of which is composed of or treated with any material which has a light transmittance of

less than seventy percent. NY Vehicle and Traffic Law, Article 9 S 375 12-a.(b)(1) (encl. A1).

§ 87(2)(g)

. It is therefore recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C – Abuse of Authority: An officer frisked § 87(2)(b)

Allegation D – Abuse of Authority: An officer searched the car in which § 87(2)(b)
was an occupant.

§ 87(2)(b) alleged that PO1 frisked him and that PO2 searched his car. § 87(2)(g)

During his interview, § 87(2)(b) said he believed he could identify PO1 and PO2 via photo array. Numerous contact attempts were subsequently made to § 87(2)(b) in order to schedule an appointment to view photos, but § 87(2)(b) was uncooperative in regard. § 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as **officer unidentified**.

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date